

#	Case Name	Tentative
50.	Daichendt v. Aviation Consultants, Inc. 2023-01306989	Defendant ACI Jet Orange County, LLC's motion for Sanctions pursuant to Code Civ. Proc. §128.7 is DENIED. Moving Defendant seeks sanctions against Plaintiff Joseph Daichendt arising out of Daichendt's filing of a Motion for Reconsideration of the Court's 11/18/25 Order regarding the Parties' cross Motions for Summary Adjudication. Moving Defendant has complied with the safe harbor provision by serving a copy of the notice of motion and moving papers to Daichendt more than 21 days before the filing of the motion. (See Code Civ. Proc. §128.7, subd. (c); see also ROA 1271 [Proof of Service on Daichendt dated 1/29/26] and ROA 1273 [Motion for sanctions filed 2/24/26].) However, Moving Defendant has failed to show that Daichendt's motion was frivolous under the law so as to support an award of sanctions under Code Civ. Proc. §128.7. "A claim is factually frivolous if it is 'not well grounded in fact' and is legally frivolous if it is 'not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.' [Citation.] In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. [Citation.] A claim is objectively unreasonable if 'any reasonable attorney would agree that [it] is totally and completely without merit.'" (<i>Bucur v. Ahmad</i> (2016) 244 Cal.App.4th 175, 189.) Here, Moving Defendant has failed to show that the motion for reconsideration was so legally frivolous that it was objectively unreasonable to file the motion. Even though Plaintiff did not prevail on the merits of the motion for reconsideration, Plaintiff has articulated a reasonable ground to file the motion -- to ensure that the record is complete in the event of an appeal. Sanctions pursuant to Code Civ. Proc. §128.7 "should be utilized only in 'the rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose.'" (<i>Kumar v. Ramsey</i> (2021) 71 Cal.App.5th 1110, 1120-1121.) Moving Defendant has not satisfied this standard. Plaintiff shall provide notice of this ruling.